

HOUSE No. 2144

The Commonwealth of Massachusetts

PRESENTED BY:

William F. MacGregor

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to transparency in employee benefits reporting in private construction.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>William F. MacGregor</i>	<i>10th Suffolk</i>	<i>1/14/2025</i>
<i>Erika Uyterhoeven</i>	<i>27th Middlesex</i>	<i>2/6/2025</i>
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>2/27/2025</i>

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By Representative MacGregor of Boston, a petition (accompanied by bill, House, No. 2144) of William F. MacGregor, Erika Uytterhoeven and Bruce E. Tarr for legislation relative to transparency in employee benefits reporting in private construction. Labor and Workforce Development.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1194 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to transparency in employee benefits reporting in private construction.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 151A of the General Laws, as appearing in the 2020 Official
2 Edition, is hereby amended by adding the following new section:-

3 Section 75. For the purpose of this section, the term “development” shall mean a private
4 residential dwelling in excess of 10 units or a retail, commercial or industrial development in
5 excess of 5,000 square feet.

6 For any private development that is in excess of \$750,000, each employer shall post in a
7 conspicuous location at the job site a certificate of compliance issued by the department showing
8 that it is registered with the department and current in its obligations relating to contributions,

9 payments in lieu of contributions, and the employer medical assistance contribution established
10 in Section 189 of Chapter 149.

11 SECTION 2. Chapter 152 is hereby amended by adding the following new section:-

12 Section 87. For the purpose of this section, the term “development” shall mean a private
13 residential dwelling in excess of 10 units or a retail, commercial or industrial development in
14 excess of 5,000 square feet.

15 For any private development that is in excess of \$750,000, each employer shall post in a
16 conspicuous location at the job site a notice providing the names and contact information for its
17 workers’ compensation carrier and agent and that it is current in its obligations relating to proof
18 of coverage verification.

19 SECTION 3. Chapter 149 is hereby amended by adding the following new section:-

20 Section 27B1/2. For the purpose of this section, the term “development” shall mean a
21 private residential dwelling in excess of 10 units or a retail, commercial or industrial
22 development in excess of 5,000 square feet.

23 For any private development that is in excess of \$750,000, each employer shall ensure
24 that each person performing services on their behalf on the job site completes the appropriate
25 entries in a sign in-out log. The sign in-out log shall include the location of the project, current
26 date, printed name, signature, Massachusetts trade license number, where applicable, and the
27 time of each entry or exit. Every contractor or subcontractor shall furnish, upon request, a true
28 and accurate record of all persons performing services on a job site for inspection by the
29 Attorney General or her designee.